HEADNOTE

> *"If the claimant's measurements relating to a claim feature are, from the outset, unconvincing and inconclusive, the defendant's failure to provide its own measurements is irrelevant, as no specific contesting within the meaning of R. 171(2) RoP is required in such a case."*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Counterclaim for revocation

PATENT
**EP 3 567 356 B1**

SNIFFING LEAK DETECTOR WITH SWITCHING VALVE AND BUFFER CHAMBER

KEYWORDS
R. 171 (2) RoP | specific contesting | measurements

**Rule 171** Offering of evidence

SUMMARY
The Local Division in Düsseldorf ruled on a counterclaim for revocation. The patent at issue relates to a sniffing leak detector with switching valve and buffer chamber. According to the headnotes of the decision, claimant's measurements may be unconvincing and inconclusive from the outset. In such cases, the defendant need not provide its own measurements. This means that specific contesting under Rule 171(2) of the Rules of Procedure is not required in such circumstances.